

State of Ohio
STATE EMPLOYMENT RELATIONS BOARD
Statutory Fact Finding Procedures

In the matter of the conciliation between:	)	Cases Nos. 2017-MED-03-0291
	)	
Columbus State Education Association	)	
Labor Organization	)	GREGORY P. SZUTER, FACT FINDER
	)	
and	)	
	)	Report and Recommendation
Columbus State Community College	)	
Public Employer	)	
	)	

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Jack Dooley Jr. VP Academic Affairs

Hearing Date: January 3, 2018 (9:30 p.m.)
Hearing Locale: College Building WD, Rm.326, Columbus, OH
Hearing Locale: City of Columbus, Ohio
Report Issued : January 22, 2018

INTRODUCTION

Columbus State Community College, (herein also "College" or "CSCC") and Columbus State Education Association, (herein "Union" or "CSEA") are parties to this statutory fact finding procedure ("fact finding") under Ohio R. C. 4117 which is a form of advisory interest arbitration for the purpose of to establishing the terms for a collective bargaining agreement. This fact finding relates to the successor of the collective bargaining agreement effective July 1, 2014 to June 30, 2017 That agreement is referred to herein as "CBA" or "the Agreement."

THE UNIT FOR BARGAINING

CSEA represents the College's Full-time Faculty:

Included: Full-time faculty members of Columbus State Community College, Instructors, Assistant Professors, Associate Professors, Professors, and Annually Contracted Faculty ("ACF").

Excluded: Adjunct faculty members, heads/directors of nonacademic departments, chairpersons of academic departments, administrators including deans, VPs, assistant to the president, president, counselors, and library employees. See SERB 2011-REP-08-0074 (Amendment of Certification)

There are approximately 334 to 337 full-time faculty. Of the 344-full-time faculty, 291 are "tenure-track" faculty and 53 are "Annually Contracted Faculty" (ACFs), who receive annual appointments. The number of ACFs the College may employ is capped by the parties' collective bargaining agreement. The CSEA and CSCC have had a bargaining relationship since about 2001 which would make this negotiation for approximately its sixth agreement.

THE COLLECTIVE BARGAINING AGREEMENT AND RECENT NEGOTIATIONS

The College and Union entered into bargaining over the terms and conditions for the expiring collective bargaining agreement. The parties met on:

April 6, 7, 13, 14, 21, 27, and 28, 2017

May 4, 5, 10, and 11, 2017

June 9, 16, 22, and 30, 2017

September 15, 2017 (mediation)

October 12 and 20, 2017 (mediation)

The parties reached tentative agreement (TA) on all contract Articles except for language issues in Article 4 which addresses faculty workload. All economic issues had been resolved in negotiations including a year-one average 5.2% annual salary increase, paid parental leave and professional development funding.

The TA are in two groupings. First are the articles that the parties tentatively agreed to accept as current contract language (CCL) without change. They are listed below with article numbers:

TA Group 1:

- 1-Recognition,
- 2-Payroll,
- 3-No Strike/Lockout,
- 13-Association Management Committee,
- 14-Management Rights,
- 15-Coding for Separation from Employment,
- 16-Personnel Files,
- 17-Interruption of Campus Operation,
- 21-Drug-Free Workplace,
- 28-College Healthcare Committee,
- 29-Flexible Spending Account,
- 32-Leave Donation,
- 35-Unpaid Leaves of Absence,
- 41-Compliance with Law,
- 42-Grammar,
- 43-Savings Clause,
- 44-In-Term Bargaining,
- 49-Totality Clause.

The CBA articles tentatively agreed upon with changed from CCL are listed below by article number and include tentatively agreed memoranda of understanding (MOU):

TA Group 2:

- 5 - Academic Calendar,
- 6 - Delaware (with numbers missing),
- 7 - Association Business,
- 8 - Academic Freedom,
- 9 - Intellectual Property,
- 11 - Grade Grievances,
- 12 - Electronic Privacy,
- 18 - Reduction in Force,
- 19 - Grievance Procedure,
- 20 - Corrective Action,
- 22 - Annually Contracted Faculty,
- 23 - Faculty Salary,
- 24 - Overload Pay,
- 25 - Substitute Pay,

26 - Teaching Awards,
27 - Benefits,
30 - Personal Leave,
31 - Sick Leave,
33 - Sabbatical Leave,
34 - Court Service,
36 - College Credit Plus,
37 - Parental Leave (new article),
38 - Promotion and Tenure,
39 - Tenure-Track Faculty Search Committees,
40 - Faculty Hired as Chair,
45 - Nursing and Lactation Support,
46 - College Safety Council (new article)
Signed MOU: English Composition, Overload, Low Enrollment Sections, Optional Health Benefit and Buy-Up Dental Plans, and Creation of Digital Course Materials and Apple iBooks

The parties were unable to resolve some issues. Matters still at impasse between the bargaining parties were submitted to advisory fact finding.

ISSUES

This Fact Finder's Report addresses the following issues at impasse as shown in the parties' position statements as of the opening of hearing.

1. Article 4, Section 4.03, Instruction.
2. Article 6, Delaware
3. Article 4, Section 4.03(A) (2), Cross Departmental Teaching
4. Article 4, Section 4.03(A) (4), Course Development and Course Offerings.
5. Article 4, Section 4.09(C), Order of Application of Reassigned Hours to Workload During Scheduling.

HEARING

The undersigned was appointed Fact Finder in this dispute by the State Employment Relations Board (SERB) by letter of November 28, 2017, pursuant to R.C. 4117.14(C)(3). Unable to meet within the statutory period, the parties stipulated that a fact finding hearing be conducted on January 3, 2018 with the report to issue January 22, 2018. Appendix A. The evidentiary hearing commenced on January 3, 2017, at Columbus., Ohio. The pre-hearing statements of both parties were received via email by close of business in conformity with O.A.C Rule 4117-9-05(F).

MEDIATION

The Ohio law encourages fact finders and conciliators to mediate disputes when practical. R.C. 4117.14 (C)(4)(f). After a good faith attempt to mediate the positions as to all open issues, the impasse was not resolved with the exception of Article 6. The parties agreed that the disposition of that article which applied to the Delaware campus would follow the disposition of the Article 4 issues of the main Columbus campus.

THE STATUTORY CRITERIA

In compliance with Ohio Revised Code § 4117.14C(4)(e) and Ohio Administrative Code Rule 4117-9-05(J) and 4117-9-05(K), the Fact Finder considered the following in making the findings contained in this report:

1. Past collective bargaining agreements between the parties;
2. Comparison of the unresolved issues relative to the employees in the bargaining unit with those issues related to other public and private employees doing comparable work, giving consideration to factors peculiar to the area and classification involved;
3. The interest and welfare of the public, the ability of the public employer to finance and administer the issues proposed, and the effect of the adjustments on the normal standard of public service;
4. The lawful authority of the public employer;
5. Any stipulations of the parties;
6. Such other factors, not confined to those listed above, which are normally or traditionally taken into consideration in the determination of issues submitted to mutually agreed-upon dispute settlement procedures in the public service or in private employment.

The general standards of interest arbitration are part of what the sixth criteria refers to. See ELKOURI & ELKOURI, *How Arbitration Works* (6th Ed., Ruben, BNA, 2003) at pp. 1358-1364:

" . . . [interest arbitration] calls for a determination, upon considerations of policy, fairness, and expediency, of what the contract rights ought to be. In submitting this case to arbitration, the parties have merely extended their negotiations – they have left it to this board to determine what they should, by negotiation, have agreed upon. We take it that the fundamental inquiry, as to each issue, is: what should the parties themselves, as reasonable men, have voluntarily agreed to?" *Twin Sheriff Rapid Transit Co.* 7 LA 845 at 848 (McCoy *et al.* 1947)

The advisory fact finding under Ohio's public bargaining law, answers the question: what would reasonable parties agree to?

"What reasonable parties should voluntarily agree to" has its limits in statutory impasse procedures. Arbitrator Edwin Benn, under the similar Illinois bargaining law stated in *Cook County Sheriff & County of Cook and AFSCME Council 31*, L-MA-09-003, 004, 005 and 006 (2010) at 7-8:

For a party in this case to achieve a changed or new provision in the Agreements — particularly for non-economic items — the burden is a heavy one. See my recent award in *City of Chicago and [Fraternal Order of Police, Lodge No. 7, (2010)]* ... at 6-7 [citation omitted, emphasis in original]:

... "The burden for changing an existing benefit rests with the party seeking the change ... [and] ... in order for me to impose a change, the burden is on the party seeking the change to demonstrate that the existing system is broken."

The operative criteria applied throughout this Report and Recommendation in is chiefly criteria #1, #2, #5, and #6.

FINDINGS OF FACT

THE PUBLIC EMPLOYER'S ACTIVITIES—COLLEGE

Columbus State Community College is a state community college district organized as a political subdivision pursuant to Chapter 3358 of the Ohio Revised Code. The College is the largest of Ohio's 23 community and technical colleges, with a reported student headcount of 27,292. It has an average class size of 20 students.¹ The College offers a variety of associate's degree, certificate and transfer programs. The main campus is in downtown Columbus, Ohio. There is a regional campus in Delaware, Ohio and a half dozen regional learning centers, where classes are taught.

Only Cuyahoga Community College, headcount 26,740, is larger among community colleges. CSCC is generally at least twice the size of other community and technical colleges. As compared to Ohio's state universities it also larger: Miami University (24,364), Bowling Green State University (19,837), and the University of Akron (23,124). It is smaller than Ohio University (36,867). Ohio Department of Higher Education — Total Headcount Enrollment by Institution and by Campus (Fall Term 2007 to 2016) CX A.

FUNCTION OF THE BARGAINING UNIT MEMBERS

In the College there are two classes of full-time faculty, Annually Contracted Faculty whose employment contract is reconsidered on a yearly basis, and tenure track faculty.

The full-time faculty at the College are responsible for delivery of course content, curriculum development and the development of course content. They are also responsible for preparation of course materials, assessment of student learning, and advising. The minimum Faculty workload is 30 contact hours per semester (ie. 4 or 5 course sections). In addition the Faculty may teach 12 "overload" contact hours per semester (ie. 3 or 4 course sections). Faculty are required to provide eight office hours per week to be available to students. Faculty are participate in a minimum of five hours per week of "mission and learning" activities. Examples of these activities include serving in a role in the work of the College and the profession. Some of these activities include professional development to maintain currency in one's field, student advising, student support activities, scholarship, and other forms of service to the department, the division, the college, their profession and the community.

OVERVIEW – THE COLLEGE'S POSITION

The College's approach to the open issues attempts to align with what it sees as its commitment to student success, workforce development, and competitive compensation. The open issues are the College's proposals which flow from the management rights to schedule and assign work, to determine the means of work, and to promote the efficiency of its operations. See R.C. 4117.08(C)(3) & (5); CBA Article 14(3)(4) (5) and (8). The proposals focus on student success by ensuring robust and diverse coursework, and a schedule that meets standards of excellence while increasing flexibility for the College to be fully responsive to the needs at may arise.

OVERVIEW – THE UNION'S POSITION

All of the proposals have been proposed by the College and are new language . They had not been part of any previously bargained contract between the parties. Further the College has pointed to no other college in Ohio that has similar provisions in faculty collective bargaining agreements. The proposal on cross departmental teaching in particular is not only questionable with regard to its giving away of bargaining unit work to non-bargaining unit workers, it is a waste of tax payer dollars to go outside the college to hire part time workers when the college already employs bargaining unit workers who are perfectly qualified to do the work.

OVERVIEW – OTHER AGREED LANGUAGE

The parties have already agreed on many Article 4 changes but have not listed it as a TA. It appears from the comparison of College Exhibit G (dated 1/2/18) and the attachment to the Union's Position Statement, 11/8/17. Every attempt will be made to clarify agreed Article 4 from disputed Article 4. The following convention is used on the proposals to Article 4 quoted below.

Normal Font: Undisputed language
Bold: Disputed language
Italics: Union proposal
Bold Italics: Disputed language

REPORT AND RECOMMENDATION

ISSUE: Tentative Agreements (TA)²

CONTRACT SECTIONS:

At the opening of the hearing both of the parties agreed that the Articles here above that remain current contract language shown as TA Group 1, except the those modified by the articles agreed in separate documents as TA's Group 2.

POSITIONS: The College: CSCC has agreed in separate documents to tentative agreements on the issues both Group 1 and Group 2.

POSITIONS: The Union: CSEA has agreed has agreed in separate documents to tentative agreements on the issues both Group 1 and Group 2.

FACT FINDINGS : The pre-hearing Tentative Agreements are those listed above at pages 2-3. The undisputed portions of Article 4 (page 7) are also agreed language.

TA ISSUE Recommendation: The Fact-Finder recommends those tentative agreements both Group 1 and Group 2. Those open terms that were not subject to Tentative Agreements at the hearing that were placed before the Fact Finder are subject to fact finding report below. The undisputed portions of Article 4 would also be recommended except that organization and clarification of the Article to be consistent with the recommendations below would be necessary. The recommendation as to undisputed Article 4 language is that it be preserved as much as practical given the other recommendations.

²

Abbreviations herein: Tentative Agreements "TA" and current contract language "CCL." The College Exhibits are "CX" and Union exhibits are "UX."

ISSUE: No. 1.

CONTRACT: Article 4, Section 4.03, Instruction (new language)

POSITIONS: The College's Proposal: This entire new language term is set out below.

Unless otherwise provided in this Agreement, effective Autumn Semester 2018, all faculty are required to teach in their respective program or discipline *at least two traditional course sections each semester (Fall and Spring)*. For the purposes of meeting this requirement, *one of the two course sections each semester may be a blended course section*. The Chairperson, based upon a determination of operational need, may grant an exception to this two course section requirement. Shared courses, interdepartmental plan of study courses, and courses created by faculty members from two or more different departments, are considered home department teaching regardless of the department in which the course is listed. (CX G, pg. 2.)

...

The College offered 3,653 course sections (Autumn 2017). Of them 71% (2,579) were traditional; 19% (709) were online; and 10% (365) were blended.

Student data for the College show that earning a "C" or better occurs in traditional or blended courses (75% traditional; 75% blended) while online courses are not as successful (68%).

Other unionized Ohio community colleges have minimum faculty participation terms in their CBA's. All are expressed in terms of minimum days per year on campus. Southern State Community College (CX B, 2016-19) 171 days on campus per two-semester academic year, with an average of 32 hours per week. Terra State Community College (CX C, 2015-18) minimum of 30 hours per week. the Lakeland Community College (CX D, 2014-17) minimum of 25 hours per week on campus. Hocking Technical College (CX E, 2013-16) 169 days per academic year. One exemplar, Edison State Community College (CX F, exp.2019), addressed workload by modality. It states that it reserves the right to limit faculty's ability to teach their entire load online.

All College faculty are hired to teach. Most faculty are hired primarily to teach traditional, in-person classes—the College's most common learning modality.

The vast majority of faculty are already at or near the minimum set by the College's proposal. 80% (222) of faculty (Autumn 2017) taught two or more traditional and/or blended courses. 7% (18) of faculty taught exclusively online. However, as the number of online courses grow, more faculty could teach exclusively online.

Most Faculty can select their classes based on seniority. The most experienced faculty may be able to choose to teach only online. New faculty must wait their turn to be senior enough to select a substantial number of online classes. The college believes online-only faculty do not keep in-person teaching skills sharp because of they have fewer in-person interactions.

While teaching only online, there is a tendency for the Teacher to work remotely via computer, potentially extending absences from campus. With more experienced teachers online, students will see more lesser experienced teachers in the classroom. Teaching two in-person classes, or one in-person and one blended class, provides students with more exposure to experienced faculty and creates a continuing presence on campus in a way that the Union's proposal does not. The College believes faculty presence on campus particularly having senior faculty teach traditional, in-person classes including introductory ones, is important to student success.

The College's operational efficiency is affected. Of the College's traditional and blended courses 77% are taught during the day. It is more difficult to secure adjuncts to teach traditional courses during the day particularly for career-technical areas and science and mathematics courses. When full-time faculty are unavailable due to online course loads, the College must rely on retirees or graduate students to teach the traditional courses.

POSITIONS: The Union's Proposal : TA on Section 4.03, Instruction, is shown below with the portion in dispute with the College in italics.

"Effective Spring Semester 2018, the College and faculty will finalize the workload one week prior to the public release of the master schedule. The Chairperson has the discretion to adjust the faculty workload in response to unforeseen circumstances or operational need, including but limited to adequate staffing of classes, adapting to enrollment changes and meeting accreditation requirements. In order to compensate for these changes, the Chairperson will allow the affected faculty to make additional adjustments to their assigned workload in a manner that does not negatively impact the established schedules of other full-time faculty. *Unless otherwise provided in this Agreement, effective Autumn Semester 2018, all faculty are required to teach in their respective program or discipline at least two traditional course sections per academic year. For the purposes of meeting this requirement, one or both of the two course sections each year may be a blended course section. The Chairperson, based upon a determination of operational need, may grant an exception to this two course section requirement. Shared courses, interdepartmental plan of study courses, and courses created by faculty members from two or more different departments, are considered home department teaching regardless of the department in which the course is listed.*"

The Union proposes two courses "per academic year," one or both of which can be face-to-face or "blended." Clarification was made at the hearing that the Union by "academic year" means Fall/Spring sessions not Fall/Spring/Summer sessions.

The College is proposal affects only for 18 faculty members. That shows there is no real problem. Only a fraction of the 7% fully online teachers will be affected because many of the basic courses, 101 level courses, are offered online. The real effect is some number under 7% (or 18).

Many full-time faculty have developed expertise in online teaching which the College has encouraged. In some departments, entire degree/certificate programs are offered online. Eg. Health Information Management, all courses except the introductory medical terminology class are offered online only.

This standard would tend to erode the bargaining unit work. The Union's fears are that requiring two classroom classes per semester, four per year, full time faculty will become limited in the number of online courses they can teach. The result can be that those online courses will be taught by part time adjuncts or administrators supplementing their income.³ The worst result would be that some teachers who had developed online classes might be prevented from teaching the very courses they developed at the request of the college. If that came to be many of the most advanced classes would be taught by part time adjuncts because those are offered on-line.

³

Assoc. Prof Fidelibus conducted a survey of records from a public record request that demonstrated the number of course hours of by modality by individual over 2015-2017. The exhibit showed many administrators/chairpersons teaching online.(UX 2) The College disputed that the administrators taught the orientation one hour course which comprised most of the list.

FACT FINDINGS: Criteria #1, #2, #5

This open issue is language that is part of Article 4 language that has already been agreed. Cf. Union proposal quoted above, non italics. It deals with minimum workload stated in terms of "modality" of delivery. That is, seated or in-person classes are the traditional norm. Online classes have been recently developed. Blended courses are a combination of in-person and online instruction, intended to be generally 50% - 50% but due to the number of days of class meetings a week it may slightly more or less. The College seeks to require two traditional courses per semester including one blended. The Union opts for two per academic year which may be either blended or traditional.

The key point of the proposal is whether a stated minimum by modality would erode the bargaining unit work. The College says that not having a minimum forces the college to use more adjuncts. The Union says having minimums will create more need for adjuncts. No one showed evidence of changes in adjunct employment.

However without minimums stated, only a very small number of teachers work exclusively online, 7%. This is a solution in search of a problem. The comparative evidence is not on point because the minimums there are stated in terms of days or hours on campus. The College already has the lowest in that requirement, 8 hours per week. If anything, the Edison State language might be recommended to limit teachers from teaching exclusively online. However, that is already a management right. CBA Article 14 expressly reserves all rights to management not otherwise bargained away. There is no need to add language to do what is already present.

ISSUE 1 Recommendation:

The Fact-Finder recommends neither proposal be adopted. Article 4.03 as already agreed and signed excluding the College's above quoted proposed language remains intact.

ISSUE: No. 2

CONTRACT : Article 6, Delaware

POSITIONS: The College's Proposal : During the mediation, the parties agreed to leave open a small portion of Article 6, Delaware Campus, pending the resolution of language in Article 4. The resolution of Article 4 will automatically resolve the placeholder in Article 6.

POSITIONS: The Union's Proposal: CSEA believes that any teaching requirements imposed on faculty at the downtown campus, should be the same for faculty at the Delaware campus.

"B. Effective Autumn Semester 2018, and taking into consideration the recommendations of the Committee described in (I) herein, Delaware faculty will achieve their instructional workload by teaching at least two traditional course sections per academic year at the Delaware campus and, in addition, teaching online courses specifically assigned to the Delaware campus. For the purposes of meeting this requirement, one or both of the two traditional course sections each year may be a blended course section. The College will endeavor to assign to the Delaware campus the number of online courses that is commensurate with the number of online courses taken by Delaware students. The designation of such courses is not intended to alter web developer rights outlined in Article 4 herein."

FACT FINDINGS: Criteria #1, #5

(1) This article addresses full-time faculty who are assigned to the newer Delaware campus, as opposed to the downtown campus. It relates the Issue 1 proposal, Article 4.03, to that campus. See Issue 1 Findings: above for context.

(2) The parties agreed to a resolution.

(3) All recommendations herein as to Article 4 shall apply to the Delaware campus.

ISSUE 2 Recommendation:

Because neither the College or Union proposal for Article 4.03 was not adopted this is moot. No change except for the undisputed language:

"B. Effective Autumn Semester 2018, the College will endeavor to assign to the Delaware campus the number of online courses that is commensurate with the number of online courses taken by Delaware students. The designation of such courses is not intended to alter web developer rights outlined in Article 4 herein."

ISSUE: No. 3

CONTRACT: Article 4, Section 4.03(A) (2), Cross Departmental Teaching (new language)

POSITIONS: The College's Proposal :

In general, it is expected that faculty will focus on meeting their workload teaching within their department and content area. However, a faculty member, Chair or Dean may request that a fully qualified faculty member teach across disciplines and academic departments in order to meet operational need or if a faculty member who is fully qualified to teach in the requested department or discipline is unable to meet their standard minimum workload or desired overload within their department. Any such requests to teach across departments must first be submitted to the home department Chairperson for consideration. Chairs of both impacted departments must agree to grant a faculty member's request to teach overload hours across disciplines and academic departments, *and the request will be considered after all full-time faculty of the department in which the faculty member seeks to teach have selected their desired overload.* Such requests will not be unreasonably denied, *and less-qualified and experienced full-time faculty from outside a department shall not have preference over full-time faculty within a department or more qualified and experienced instructors within a department.* (CX G, pg. 3.)

It is a College priority to ensure that classes are taught by leading subject-matter experts. That includes adjunct professors. Faculty and adjuncts maintain their professional development in their disciplines. Most adjuncts have both teaching experience and are actively within their respective industries. Their real-world experiences are highly valuable to students.

Students deserve more than minimally qualified teachers. The College does not prefer a less qualified full-time faculty member from another department over a qualified adjunct instructor within a department. The College evaluated the request of an "outside" full-time faculty member with the required degree to teach education classes earned many years ago the member never taught in a K-12 classroom. There were nine (9) better qualified adjuncts who held M.Ed. degrees and almost all with relevant K-12 classroom teaching and/or administrative experience.

The proposal does not seek to entirely ban faculty from teaching in another department. The College simply states a balanced way to evaluate requests of faculty to teach outside of their home department subject to both affected chairpersons agreement.

The Union's proposal differs in two key respects. First, the Union proposes adding language that requires the College to assure the faculty meet their minimum workload. The Union's proposal is both thematically out of place, having nothing to do with the process of teaching across departments and disciplines, and could create confusion with the existing Reduction in Force Article (Art. 18), which has already been agreed upon. Moreover, the College has agreed to insert this language in Section 4.03(A)(3) in the Course Selection section. (CX G, pgs. 4-5.)

The Union proposal that faculty requests not be denied in favor of an adjuncts deprives the College the ability to retain adjuncts with unique skills and qualifications, often with many years in their respective departments. This can only be adverse to student success.

POSITIONS: The Union's Proposal:

Cross-departmental teaching by full-time faculty has always been accepted at the College. For instance, a full-time faculty member in the Social and Human Services Department usually teaches between one half and three-fourths of their teaching load in the Allied Health Department. A faculty member in the Social Sciences Department often teaches a statistics class in the Mathematics Department. CSEA believes that the new language proposed by the college gives preference to part-time or temporary adjunct instructors.

CSEA's proposed language for the relevant section of 4.03(A) (2), Cross Departmental Teaching is shown below with the portion in dispute with the College in italics.:

2. Chairperson Scheduling Considerations

As the Chairperson, or their designee, makes course/section assignments, they the chairperson will take faculty seniority, the faculty member's preference, their assigned campus, and the faculty member's full-time status into consideration. If these assignments cannot be agreed upon, the Chairperson shall retain authority to make a final determination of course assignments. Upon request, the Chairperson will give the faculty member the rationale for the assignment. The faculty member may request a meeting with the Chairperson and the Dean to discuss further the rationale of the assignment. A union representative may be present at such a meeting.

*It is expected that faculty will focus on meeting their workload within their department and content area. However, a faculty member, Chair, or Dean, may request that a fully qualified faculty member teach across disciplines and academic departments in order to meet operational need or if a faculty member who is fully qualified to teach in the requested department or discipline is unable to meet their standard minimum workload or desired overload within their department. **If the College determines there is an enrollment decline impacting a faculty member's ability to meet their standard minimum workload within a department, the College will make every reasonable effort to offer work that completes the standard minimum workload.** Any such requests to teach across departments must first be submitted to the home department Chairperson for consideration. Chairs of both impacted departments must agree to grant a faculty member's request to teach overload hours across disciplines and academic departments. Such requests will not be unreasonably denied, **and full-time faculty requests will not be denied in favor of an adjunct instructor.***

Cross-departmental teaching is voluntary and faculty may decline a request from another department to teach outside of their home department."

FACT FINDINGS: Criteria #1, #6

The College proposes new language in Sec. 4.03(A)(2) addressing full-time faculty to teach outside of their "home" department. After all full-time faculty within the "away" department have made their course selections, the requests of qualified and experienced faculty will be considered as long as more qualified and experienced adjuncts within a department are not displaced.

Again the Union fear is erosion of the bargaining unit work. However this work is the "overload" work. That is, these are the extra courses above and beyond the normal workload of the faculty. It is the equivalent of overtime opportunities for nonexempt employees. True it is out of the home department, but the work is still within the qualifications of the employee. It is not like an art teacher seeks to teach French which she does not speak. The exclusive bargaining unit agent (Union), by virtue of its recognition and certification, represents all full time teaching jobs in the College.

On the other side of the ledger, the College is the sole determiner of the qualifications of the workers. The seniority in the bargaining unit is typically a tie breaker but not a substitute for the necessary (minimum) qualifications.

Another consideration is a bad practice that collective bargaining has for generations sought to avoid, that of job hunting. The solution developed is that seniority is not to be used to displace and incumbent from a job assignment but only to fill a vacancy.

Putting these concerns together, it is appropriate to protect the workload of the "away" full time faculty from incursion. It is appropriate that full time faculty have overtime opportunity among vacancies in the away department. The worry becomes the fact that faculty may fill their overtime hours first, including from "away" departments. That is also a problem that can be solved.

ISSUE 3 Recommendation:

It is expected that faculty will focus on meeting their workload teaching within their department and content area. However, a faculty member, Chair or Dean may request that a fully qualified faculty member teach across disciplines and academic departments in order to meet operational need or if a faculty member who is fully qualified to teach in the requested department or discipline is unable to meet their standard minimum workload or desired overload within their department. Any such requests to teach across departments must first be submitted to the home department Chairperson for consideration. Chairs of both impacted departments must agree to grant a faculty member's request to teach overload hours across disciplines and academic departments, ***and the request will be considered after all full-time faculty of the department in which the faculty member seeks to teach have selected their desired overload.*** Such requests will not be unreasonably denied ***and full-time faculty requests will not be denied in favor of a newly hired adjunct instructor.***

ISSUE: No. 4

CONTRACT: Article 4, Section 4.03(A) (4), Course Development and Course Offerings (new language)

POSITIONS: The College's Proposal:

Replaces Section 4.03(A)(3) in the expired contract and effective Autumn Semester 2018:

A. The full-time faculty who develop a new course in any modality shall have the right of first refusal to teach the course, for the first two semesters following development, up to a full workload. Thereafter, full-time faculty shall have the right of first refusal to teach the course for up to two sections per semester for the next five semesters in which the course is offered. *Thereafter, the Chairperson has the discretion to offer to other full-time faculty the opportunity to teach, revise or redesign the course. If the Chairperson elects not to offer such opportunities to other full-time faculty, the existing full-time faculty member will have the continued opportunity to teach two sections per semester for the next five semesters. The evaluation process by the Chairperson would then repeat.*

B. During the seven-semester period, the full-time faculty developer shall assume responsibility for maintaining the accuracy and currency of the departmental shell for that course as part of their instructional duties. *Thereafter*, the Chairperson will determine *whether the existing full-time faculty member will maintain the accuracy and currency of the departmental shell or* whether a lead instructor is needed for that course and will partner with department faculty to ensure that course quality is maintained.

C. *After the seven-semester period, if the Chairperson, in consultation with the faculty, determines that revisions to or redesign of a course is warranted, the Chairperson may give the full-time faculty who originally developed a course the opportunity to revise or redesign the course. If the original developer accepts the opportunity, or if other full-time faculty are subsequently assigned to alter the course's content, they shall then be considered the developers of the course and assume the right of first refusal to teach the course for two sections per semester for the next five semesters. The evaluation process would then repeat.* (CX G, pgs. 5-6.)

Existing CBA Article 4.03(A)(3) continues effective the before Autumn Semester.

The proposal allows a course-developer the ability teach and maintain the course for a period of time and then the Chair may decide either to renew for another five semesters with the original developer, or offer the course to another full-time faculty member who would then revise and maintain it for another five semesters. Thereafter, the process is repeated on a five semester cycle.

In subsection B the word "thereafter" disputed. The College proposal uses the word to clarify that the Chair's discretion does not come into play in the first seven semesters.

In subsection C, the proposal allows for a consultative process before any changes to a course are made. If the course is given to other faculty for teaching, and redesigning, they are treated as the developer on a renewable five semester basis.

The Union's proposal requires mandatory revision or redesign of a course every 7 semesters, without a consultative process, and a new developer's rights of first refusal are in perpetuity since, unlike the original developer, no time element is stated.

POSITIONS: The Union's Proposal:

4. Course Development and Course Offerings

The provisions of Article 9 with regard to College-owned work-for-hire apply to course development, revision and redesign. When a course is offered or proposed for development, or a course is subject to revision or redesign in any modality, the College will extend to qualified tenure-track faculty the right of first refusal to teach, revise or redesign the course. If qualified tenure-track faculty refuse the opportunity to develop, teach, revise or redesign a course, the College will offer the opportunity to a qualified ACF or a qualified adjunct instructor.

Until Autumn Semester 2018, the terms of Article 4.03(A) (3) in the agreement effective July 1, 2014-June 30, 2017 will apply to course development. Effective Autumn Semester 2018, the following provisions apply to course development, revision and redesign:

A. *The full-time faculty who develop a new course in any modality shall have the right of first refusal to teach the course, for the first two semesters following development, up to a full workload. Thereafter, full-time faculty shall have the right of first refusal to teach the course for up to two sections per semester for the next five semesters in which the course is offered.*

B. *During the seven-semester period, the full-time faculty developer assumes responsibility for maintaining the accuracy and currency of the departmental shell for that course as part of their instructional duties. The Chairperson will determine whether a lead instructor is needed for that course and will partner with department faculty to ensure that course quality is maintained.*

C. *After the seven-semester period, the Chairperson **will** give the full-time faculty who originally developed a course the opportunity to revise or redesign the course. **If the original developer declines the opportunity or refuses to implement recommendations for revision made by the Department curriculum committee and Chairperson, the Chairperson may assign other qualified faculty to revise or redesign the course.** If the original developer accepts the opportunity, or if other full-time faculty are subsequently assigned to alter the course's content, they shall then be considered the developers of the course and assume the right of first refusal to teach the course for two sections per semester for the next five semesters. The evaluation process would then repeat.*

The College's proposal treats course development for all modalities the same in terms of right of first refusal. This reflects a fundamental lack of understanding of the different requirements for course development depending on the modality. For traditional courses, course development involves creating a course proposal, course outline, and sample syllabus.

For distance learning courses, course development involves all those of traditional courses plus creating 16 weeks' worth of lectures, course presentations, exams, quizzes, assignments, and discussion boards embedded within a learning management system. Because the College encourages using numerous forms of technology, distance learning courses include interactive learning objects, videos, and lecture recordings. The developer's face, voice, and words are uniquely embedded in an online course. When Faculty update and revise distance learning courses each semester there are technical changes like updating due dates, but it also involves updating and revising lectures, assessments, and discussion boards. These substantive revisions are not paid for by the college.

By eliminating the right of first refusal for distance learning courses after 7 semesters, the College could be potentially violating the faculty member's intellectual property rights and the faculty member's right of first refusal under Sec. 9.03(B), Intellectual Property. To be a work for hire, the faculty member is given reassigned time to create the course, the intellectual property rights lie with the College. However after that initial course development, the many changes, updates, new assignments, revised lectures, videos, pictures, or recordings are either shared ownership under Sec. 9.03(B) or are owned by the faculty member if college resources are not used.

The College's proposal allows the chair to pull right of first refusal arbitrarily and to pass the course off to another faculty member. This is generally not a problem with traditional courses. In distance learning the entanglement with intellectual property rights and the additional work required to maintain and update distance learning courses, there is likely to be a disruption in the College's ability to deliver the course, the quality of the course, and the protection of faculty intellectual property rights.

The proposal provides no requirement that the College engage in an evaluation of the quality of the course or any sort of criteria to determine when and if right of first refusal will be pulled. The College gives faculty some input in Sec. 4.03(A) (4) (C), but maintains the arbitrary decision making in (A). The two subsections also seem to conflict.

CSEA believes that faculty qualifications, course quality and student success should be the determining factors in the maintenance of right of first refusal for distance learning courses, yet the College has rejected any attempt by CSEA to include such criteria in the contract.

Protecting against arbitrary decision making on the part of chairs is one of the very reasons for the existence of CSEA. The Union fears for a faculty developer of a distance learning course might be "punished" by removing their right of first refusal for reasons other than the course (eg. refusing special assignments or making complaints.)

FACT FINDINGS: Criteria #1, #5, #6

The proposal allows a course-developer the ability teach and maintain the course for a total of seven semesters subject to their the right of first refusal. The first sentence allows for two and the second for five more semesters after the first two. The difference is that the 2 semester commitment is for any number of sections and the 5 semester is a maximum of two sections per semester if it is offered. After seven semesters, Subsection A affords the Chairperson some discretion to evaluate the course. The Union's argument assumes the initial period is seven semesters but the Union's Subsection A omits the Chair's function all together.

Both agree on the original developer's responsibility for the first seven semesters in Subsection B. The second sentence of Sub B is two clauses and the Union agrees only with the second. The second does not make sense without the first, Also the second sentence does not fit with the context of the first sentence which addresses responsibilities for the content. A better second sentence would reflect the successor developers's responsibilities. The reference to the curriculum committee and chair making recommendations is relocated here to indicate that it can be an ongoing process. The developer maintains final discretion over the course for the relative seven or five semester terms. The College agrees the Chair does not have a discretionary role in the first period.

The displacement process is in the third paragraph, Sub C. The College proposal appears to limit the displacement to situations where the original developer does not take the recommendations. Since they are made collaboratively and address only the course, that appears to be reasonable and not arbitrary. Extraneous arbitrary bases need not concern the Union where the language is followed.

At the end of the initial period when the course-developer had the responsibility there is no process. Typically the original developer continues but that is unstated. The Union proposal mirrors that. The rest is clarified to eliminate any time ambiguity.

The Union makes a good argument on intellectual property rights. If the course is designed once and for all it is a work for hire. It claims that the continuous revisions make it a shared property.

That may be so or it may be that the revisions are minimal or technical and would not. The revision recommended puts the developer in control of the course during the relative seven/five semester periods open to suggestion and subject to substantive removal only where there is lack of cooperation. That should be sufficient to maintain the relative property rights of both parties to the extent they are otherwise recognized.

ISSUE 3 Recommendation:

- A. The full-time faculty who develop a new course in any modality shall have the right of first refusal to teach the course, for the first two semesters following development, up to a full workload. Thereafter, full-time faculty shall have the right of first refusal to teach the course for up to two sections per semester for the next five semesters in which the course is offered.
- B. During the above seven-semester period, the full-time faculty developer assumes responsibility for maintaining the accuracy and currency of the departmental shell for that course as part of their instructional duties. Those responsibilities continue for so long as the original full time faculty developer continues with the course. If the original full time developer is replaced by another full time faculty, that successor will assume those responsibilities. Any recommendations to the responsible developer for revision or redesign shall be made only by the Chairperson with agreement of the Department curriculum committee.
- C. After the initial seven-semester period, if the original developer elects not to continue, or declines or refuses to implement recommendations for revision or redesign, the Chairperson may retain a new full time faculty member as a successor developer. If the original developer continues, or if other full-time faculty are subsequently assigned, they shall then be considered the developer of the course and assume the right of first refusal to teach the course for two sections per semester for the next five semesters. The evaluation process would then repeat.

ISSUE: No. 5

CONTRACT : Article 4, Section 4.09 Reassigned Time (first two paragraphs) and 4.09 (c) (new language)

POSITIONS: The College's Proposal : (Underscoring shows language relocated from CCL.)

Section 4.09 – Reassigned *Hours*

There are many areas in which full-time faculty assume leadership roles at the College. These include lead instruction, program coordination, special project management *and other projects within the faculty member's expertise*. Qualified full-time tenure-track faculty in the department/program shall be given the right of first refusal on these leadership roles. If no tenure-track faculty member in the department/program wishes to accept the *leadership role, the Association President will be notified*, and qualified ACF in the department/program shall be given the opportunity for the leadership role. If no qualified ACF in the department/program accepts, the Chair may assign the opportunity to a qualified adjunct instructor. *Open leadership roles for faculty fellow positions shall be communicated to all tenure-track faculty at the College and applications from qualified tenure-track faculty shall be solicited.*

Reassigned hours are distinguished from Mission and Learning hours. *Effective Autumn Semester 2018, reassigned hours will first be applied to reach a faculty member's standard workload per semester. When the departmental scheduling process begins, faculty with reassigned hours will participate at the start of the regular scheduling process until their standard minimum workload is met, including reassigned hours.* The Chair has the discretion to allow adjustments of reassigned hours in response to operational need or unforeseen circumstances. (CX G, pgs., 14-15.)

...

C. Special Projects

Reassigned hours will be granted for special projects as defined below that require more hours than is allocated in the faculty workload model. *These special project reassigned hours will first be applied to reach a faculty member's standard workload per semester. When the departmental scheduling process begins, faculty with reassigned hours will participate at start of the regular scheduling process until their standard minimum workload is met, including reassigned hours.* (CX G, pg.19.)

The impasse is on two issues: (1) the College's obligation to notify and solicit applications from tenure-track faculty each time a "leadership" opportunity arises(¶1, last sentence); and (2) the manner in which faculty hours for College projects ("reassigned hours") are accounted for as they pertain to meeting minimum workload requirements (all other language).

The College would limit the notification obligation to the Faculty Fellow position. This is the key administrative leadership role with college-wide impact. The Union would include notice of all such leadership positions by the "including but not limited to" language. This is vague and burdensome. There is a multitude of special assignments, many unknown at the College level, for roles in a variety of projects in the departments. Many of those positions could be termed "leadership." In each case the opportunity would need to be identified before the fact, evaluated for compliance and applications solicited, all presenting an undue administrative burden given the plethora of occasions this could be applied. The Union language is unworkable and would proliferate potential grievances.

"Released time" for faculty refers to voluntary, compensated release-time from their contractual teaching obligations to support strategic administrative initiatives of the College. Neither their release time activity nor their teaching schedules should impair one another. The College believes its proposal will ensure that faculty will be available and free from teaching conflicts for project work. The paid administrative work assignments ought not conflict with time commitments to class work. By controlling the scheduling process such conflicts can be avoided. The proposal opens the release time projects to all faculty within a department with opportunity to select more desirable course times. This is a more fair and equitable approach to scheduling.

POSITIONS: The Union's Proposal:

There are many areas in which full-time faculty assume leadership roles at the College. These include lead instruction, program coordination, special project management and other projects within the faculty member's expertise. Qualified full-time tenure-track faculty in the department/program shall be given the right of first refusal on these leadership roles. If no tenure-track faculty member in the department/program wishes to accept the leadership role, the Association President will be notified, and qualified ACF in the department/program shall be given the opportunity for the leadership role. If no qualified ACF in the department/program accepts, the Chair may assign the opportunity to a qualified adjunct instructor. *Open leadership roles **including but not limited to** faculty fellow positions shall be communicated to all tenure-track faculty at the College and applications from qualified tenure-track faculty shall be solicited.*

Reassigned hours are distinguished from Mission and Learning hours. The Chair has the discretion to allow adjustments of reassigned hours in response to operational need or unforeseen circumstances. The full-time faculty member has the right to request the assistance and participation of an Association representative in the reassigned hours process. The specific agreed upon hours, duties and responsibilities for any reassigned hours shall be recorded in writing and signed by both the full-time faculty member and the chairperson. This document shall be executed at least one week prior to the public release of the master schedule for the term in which the reassigned hours will occur. For reasons related to operational need, the reassigned hours may be amended thereafter upon agreement of the faculty member and the Chairperson.

The amount of reassigned hours is negotiated and calculated based on the 16-week semester model. It is assumed that, for every reassigned hour granted, two hours will be dedicated to the task. The faculty member will adjust his/her workload for each reassigned hour as follows: one hour from direct instruction and 1.00 hour from grading and class preparation.

...

C. Special Projects

Reassigned hours will be granted for special projects as defined below that require more hours than is allocated in the faculty workload model. Special project reassigned hours may be offered by a Dean, an Administrator, the Senior Vice President of Academic Affairs, or the College President after consultation with the Chairperson.

The parties share the goal of using a fair and equitable scheduling process for faculty. All previous contracts state that, "As the chairperson makes course/section assignments, the chairperson will take faculty seniority, the faculty member's preference, and the faculty member's full-time status into consideration." CSEA and the College have agreed to continue this in the current contract.

The College has made several proposals on this that have become agreed: 4.03 (finalizing the workload before the master schedule); 4.03(A.3) (creating a committee for recommendations

on a process for faculty within a department to rotate through the course selection in order to reach their full workload.) It is not logical to create a such committee on scheduling procedures while at the same time setting up detailed scheduling procedures that have not been vetted.

The Union disagrees to the new proposal of considering reassigned hours during the scheduling process. "Reassigned" hours are those not related to courses and instruction but to other roles chiefly committee and projects activities. They include work on accreditation committees, curriculum development, maintaining classroom lab equipment, and managing and advising adjuncts both on campus and in high schools.

The majority of full-time faculty teach some of overload courses every semester. Under the College's proposal faculty who have accepted reassigned hours will have to sit out of the scheduling process before choosing their overload courses. This puts them at a disadvantage in selecting overload hours based on taking other projects that usually the College had requested. The proposed language seems designed to discourage taking on the very leadership and special projects. The faculty member must chose between accepting scheduling hardships and income potential unless they do not participate in reassigned hours at all.

The College proposes it give reassigned hours to Annually Contracted Faculty (ACF), and to adjunct faculty. If difficult choices presented between schedule and income affect tenure-track faculty who must turn down reassigned hours, the hours will be offered to non-tenured individuals. Those instructors out of concern for their position would be reluctant turn down administrative tasks.

This is a management issue. The current contract states many times that the schedule is managed and set by the department Chairperson. They make the course assignments and final determination. Therefore the course schedule is already in the hands of management. The Chairpersons should be able to use discretion in consultation with their faculty members. Each department has unique scheduling needs.

There are many faculty members that will be harmed by this change. See statement of Professor Rebecca Mobley, Honors program. (UX 1)⁴

FACT FINDINGS: Criteria #1, #5, #6

(1) Order of Application of Reassigned Hours to Workload During Scheduling. The dueling language on the methodology for reassigning hours centers on whether the scheduling the overload hours should be affected by faculty that are scheduled for reassigned hours. Going back to the concept that the bargaining agent represents all the full time faculty jobs that includes overtime opportunities. The basic course load is obviously the full time job; the overload courses are complimentary. But a released time opportunity is completely supplemental, no matter how important or prestigious or enjoyable it may be. As the college said repeatedly, the faculty is hired to teach. That is first and foremost. That being the case, those who are interested in overtime assignments to complement their income ought not be foreclosed because of a supplemental opportunity.

What the College is really fears is that the operation of seniority might allow experienced faculty to monopolize (my word) both the "best"(whatever that may mean) overload schedule and

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The College disputes that Prof. Mobley is an exemplar of released time because her full 15 hour work load was replaced with the Honors Program.

release time assignments. The effect is to, from the College's view, frustrate the desires of ACF faculty and adjuncts. The Union responds that there is no role for the CBA to govern the employment of the adjuncts and that ACF, who are its members also, have not complained.

The Fact Finder notes that the first paragraph of the Sec. 4.09 proposal is virtually the CCL from the current CBA. The third sentence about ACF in the proposal merely restates what is in the CCL with the modification of placing the Association representative in the ACF sentence instead of the adjunct sentence. This is appropriate from the Union's argument that the Union represents the full time faculty not the adjuncts. Like the CCL, the next sentence allows for the assignment to the adjuncts but removes a vague sort of canvassing step of all full time faculty. With the result being the same, (ie adjuncts bidding) with less ambiguity the College's language is being recommended.

(2) Notice. The next sentence is the notice issue but becomes a part of a separate paragraph with the introductory material. On the notice issue, the Fact Finder proposed at hearing that a definition be made for "leadership roles." Both parties balked claiming there are too many variations of release time opportunity. The Fact Finder still sees the use of a definition as the solution because the CBA lists three well defined leadership roles in Sec. 4.09 (A)(B) and (C). Since the CCL and TA on Sec. 4.09 has well defined subparts on lead instruction, program coordination, and special projects that is the scope of the notice along with the Faculty Fellow which the College agrees is a position of significance. These do not encompass all release time opportunities. Any other released time opportunity is not subject to notice and solicitation as before.

The intent is to have the defined leader roles subject to notice/solicitation but to have any others be more flexible. Even so leader roles and other release time opportunities are all to be filled in the three step procedure of what is now the second paragraph.

(3) Subpart C. The recommendation is taken from the Union proposal. It is used to clarify that the workload proposal of the College was not adopted in the first paragraph.

(4) The Union's proposal depicts the College proposal without the disputed proposed language of the College. Not reciting it in the recommendation below is not a rejection of the language and does not modify the recommendation the parties acceptance of the rest of Section 4.09.

Implementing these findings the following recommendation is made.

ISSUE 3 Recommendation:

Section 4.09 – Reassigned Hours

Reassigned hours are distinguished from Mission and Learning hours and include "leadership roles" at the College. These are lead instruction, program coordination, special project management. There are many other opportunities within the faculty member's expertise for which full-time faculty may receive release time assignments that are not defined as leadership roles above. Open leadership roles for Faculty Fellow positions and for lead instruction, program coordination, and special project management positions shall be communicated to all tenure-track faculty at the College and applications from qualified tenure-track faculty shall be solicited.

Qualified full-time tenure-track faculty in the department/program shall be given the right of first refusal on any release time opportunity. If no tenure-track faculty

member in the department/program wishes to accept the leadership role, the Association President will be notified, and qualified ACF in the department/program shall be given the opportunity. If no qualified ACF in the department/program accepts, the Chair may assign the opportunity to a qualified adjunct instructor. The Chair has the discretion to allow adjustments of reassigned hours in response to operational need or unforeseen circumstances.

...

C. Special Projects

Reassigned hours will be granted for special projects as defined below that require more hours than is allocated in the faculty workload model. Special project reassigned hours may be offered by a Dean, an Administrator, the Senior Vice President of Academic Affairs, or the College President, after consultation with the chairperson. . . .

Made and entered at Cuyhoga County, Ohio
January 22, 2018



Gregory P. Szuter, Fact Finder

PROOF OF SERVICE:

The foregoing has been sent by electronic mail via the internet on January 22, 2018, to both CSEA/OEA, and the Columbus State Community College in care of their representatives per addresses shown on the cover and filed with the State Employment Relations Board in the same manner.

APPENDIX A
STATE OF OHIO
STATE EMPLOYMENT RELATIONS BOARD

IN THE MATTER BETWEEN :
Columbus State Education Association, : Case No. 2017-MED-03-0291
Union : Before: Gregory P. Szuter
and : Fact Finder
Columbus State Community College, :
Employer :

**JOINT AGREEMENT OF EXTENSION OF TIME FOR
FACT FINDING HEARING AND FACT FINDER'S REPORT**

The parties hereby mutually agree to conduct the fact-finding hearing in the above-referenced case on **January 3, 2018**. The parties also mutually agree, pursuant to Ohio Revised Code 4117.14(C)(5) and Ohio Administrative Code Rule 4117-9-05(G), to have the fact finder issue his report to the parties on **January 22, 2018**.

/s/ Thomas Shanahan (per auth. 11/30/17)

Thomas Shanahan
Columbus State Education Association
Representative

/s/ Christopher E. Hogan

Christopher E. Hogan
Columbus State Community College
Representative

CERTIFICATE OF SERVICE

I hereby certify that a true copy of the foregoing was sent by e-mail only to:

Gregory P. Szuter, Fact Finder
gpszuter@gmail.com
6090 Royalton Rd. #341
Cleveland, OH 44133

this 30th day of November, 2017.

Thomas Shanahan
tgshanahan@gmail.com
Columbus State Education Association
550 E. Spring Street
Columbus, OH 43215-1722

/s/ Christopher E. Hogan

Christopher E. Hogan (0070236)